Arvind vs State Of U.P. on 1 December, 2020

Author: Rahul Chaturvedi

Bench: Rahul Chaturvedi

```
HIGH COURT OF JUDICATURE AT ALLAHABAD


  A.F.R.

Court No. - 67


Case :- CRIMINAL MISC. BAIL APPLICATION No. - 39888 of 2020

Applicant :- Arvind

Opposite party :- State Of U.P.

Counsel for Applicant :- Amit Daga

Counsel for Respondent :- G.A.


Hon'ble Rahul Chaturvedi,J.
```

1. Heard Shri Amit Daga, learned counsel for the applicant; learned A.G.A. and perused the record of the case.

2. Applicant, Arvind, who is husband, facing incarceration since 25.5.2019 in connection with Case Crime No.281 of 2019, u/s 304-B, 498-A I.P.C. and Section 3/4 of Dowry Prohibition Act, P.S.-Kotwali, District-Jhansi. He is seeking bail by means of the present bail application in aforesaid case crime.

3. Long and short of the prosecution case, as culled out from the F.I.R., is that the applicant-Arvind happens to be the husband of deceased-Ms. Poonam Kushwaha, who was the daughter of Prakash Chandra Kushwaha (the informant). On 27.6.2018 both of them were tied into nuptial knot as per

Hindu Rites and Customs. Thereafter, an unfortunate incident took place whereby around 6.00 in the evening of 17.5.2019 the wife has committed suicide by hanging herself. For this incident, the informant lodged an F.I.R., on the same day i.e. 17.5.2019 at 22.57 hours. Thus, it is clear that within less than a year (11 months to be precise) of the marriage this unfortunate incident took place whereby the wife has lost her life by hanging.

4. Galvanized by the incident, her father within no time of the incident has succeeded in lodging the F.I.R., roping in all eight members of the in-laws including the husband-applicant, irrespective of their inter se relationship with the husband and their respective roles in commission of the offence. As per prevailing practice in the society now a days, a tailor-made story was stitched by mentioning that during the marriage of her daughter Poonam, the informant has spent Rs.9 lacs approximately, but her greedy husband and her in-laws were demanding Rs.5 lacs and a car as an additional dowry. On this score the deceased was severely harassed and tortured by all the named accused persons. On the fateful date and time, a call was made by his son-in-law (Arvind-Applicant) on the mobile phone of informant's daughter Neha, informing her sister has committed suicide by hanging herself and she was admitted in medical college. Soon after, the informant with his family members reached to the medical college, he saw that his daughter was lying dead. Thereafter he leveled a general and omnibus allegation for alleged torture/harassment against all the accused persons, resultantly she hanged herself. It was also revealed from the F.I.R., that at the time of incident, the deceased was carrying the pregnancy of about six months.

5. There is specific allegation of demand of Rs.5 lacs and a four wheeler as an additional dowry against all accused persons, attributing a general and omnibus role of torturing the deceased with regard to said additional dowry.

6. The autopsy of the deceased was conducted on 18.5.2019 by a panel of doctors at Post Mortem House Jhansi. As per the findings of the doctors, the deceased was 25 years of age. The doctors do not find any external injury over her person except singular ligature mark around her neck, obliquely placed. Hyoid bone was found intact. But her Uterus was detected as Gravid, in which a male foetus was present, aged about 5-6 months. As per the opinion of doctors, SHE DIED ON ACCOUNT OF ASPHYXIA AS A RESULT OF ANTE MORTEM HANGING.

7. During investigation the police has recorded the statements u/s 161 Cr.P.C. of the informant, Prakash Chandra Kushwaha; Rahul S/o informant; Geeta Devi W/o informant; Km. Neha D/o informant; Jitendra Kumar Dwivedi; Neeraj Kushwaha and Ravi Kushwaha. On a plain reading of all these statements, which are almost repetition of prosecution story as mentioned in the F.I.R., with minor and insignificant alterations. In their respective statements all these witnesses have alleged that, on account of demand of additional dowry in the shape of Rs.5 lacs cash and a four wheeler by the deceased, she was harassed and tortured on that score, and thereafter, she eventually was hanged by all her in-laws, including her husband. Only startling feature in these statements is that, none of these witnesses in their statements have revealed, that during life time she has ever made any complaint about the said torture or harassment to the informant or any other family members regarding alleged demand of additional dowry by her husband or in-laws.

8. On the above prosecution story, learned counsel for the applicant has drawn attention of the Court to the fact that the applicant is a poor Deed Writer in the chamber of one Mr. Akhilesh Sharma at the Tehsil premises of Jhansi. At the relevant point of time, the applicant was working in the chambers, whereas the deceased at the residence after bolting room from inside hanged herself.

9. Additionally, it was argued by Shri Daga, learned counsel for the applicant, that the applicant is a low paid deed writer and it is beyond his means or imagination to demand a four wheeler as he cannot afford the daily/recurring expenses of a four wheeler automobile, as alleged in the F.I.R.

10. The Court is in position to easily visualize the monthly or daily earning of a scribe of DEED and thus without referring or analyzing much on this issue that there is an unbridgeable gap in the daily/monthly earning of the applicant viz-a-viz the alleged demand of a four wheeler. In fact this is an entirely bald and speculative allegation has been levelled against applicant by the informant.

11. So far as the real reason behind taking of the ultimate step by the deceased is concerned, it has been canvassed by learned counsel for the applicant that the elder sister of the deceased was running a beauty parlor at her parental home prior to her marriage. Subsequently the deceased has took over its operation, but after her marriage the said beauty parlor got closed. The deceased has tried to persuade her husband to join her at her parent's place so that she may reopen the said beauty parlor. This offer seems to be unaccepted by her husband, due to which she got frustrated which eventually led to a serious discord and misunderstanding between the husband and wife. Not only this, during this period she became pregnant also. It appears that being a committed entrepreneur, her pregnancy was coming in her way of achieving her target/dream of reopening the beauty parlor. In fact, the deceased was forced to live with this diagonally opposite responsibility i.e. her natural inclination to run the beauty parlor with the help and co-operation of her husband BUT instead of this, she was forced to face the liability of her pregnancy. This was indeed a dichotomous situation for her, which all likely have prompted her to take this extreme, though foolish, step of hanging herself.

12. Per contra, learned A.G.A. while opposing the bail application has drawn attention of the Court to the provisions of Section 113-A of the Indian Evidence Act and has strenuously argued that, even assuming that deceased has self immolated her by hanging herself, the presumption would go against her husband or his relatives, if she died within the seven years of marriage and her husband or his relatives had subjected her to cruelty for want of additional dowry. In that event, the court MAY PRESUME that such suicide had been abetted by her husband or by his relatives.

13. After having rival submissions, factual as well as legal aspects of the issue, let us examine the applicability and operation of Section 113A of Indian Evidence Act in the context of present case.

14. Before dissecting Section 113-A of the Indian Evidence Act and its impact upon the prosecution, it is imperative to spell out the provisions of Sections 306, 107 and 498A of I.P.C. and also Section 113-A of the Indian Evidence Act, which read thus :-

"306 IPC. Abetment of suicide.--If any person commits suicide, whoever abets the commission of such suicide, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine."

"107 IPC. Abetment of a thing.-A person abets the doing of a thing, who--

(Firstly)-- Instigates any person to do that thing; or (Secondly)--Engages with one or more other person or persons in any conspiracy for the doing of that thing, if an act or illegal omission takes place in pursuance of that conspiracy, and in order to the doing of that thing; or (Thirdly)-- Intentionally aids, by any act or illegal omission, the doing of that thing. Explanation 1.--A person who, by wilful misrepresentation, or by wilful concealment of a material fact which he is bound to dis□close, voluntarily causes or procures, or attempts to cause or procure, a thing to be done, is said to instigate the doing of that thing.

Explanation 2.--Whoever, either prior to or at the time of the commission of an act, does anything in order to facilitate the commission of that act, and thereby facilitate the commission thereof, is said to aid the doing of that act."

"498A IPC. Husband or relative of husband of a woman subjecting her to cruelty.--Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine. Explanation.--For the purpose of this section, "cruelty" means--

(a) any wilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or

(b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand."

"113A of Evidence Act. Presumption as to abetment of suicide by a married woman.--When the question is whether the commission of suicide by a woman had been abetted by her husband or any relative of her husband and it is shown that she had committed suicide within a period of seven years from the date of her marriage and that her husband or such relative of her husband had subjected her to cruelty, the Court may presume, having regard to all the other circumstances of the case, that such suicide had been abetted by her husband or by such relative of her husband. Explanation.--For the purposes of this section, "cruelty" shall have the same meaning as in section 498A of the Indian Penal Code (45 of 1860)."

15. The provisions of Section 113A of the Evidence Act was introduced by the Criminal Law (Second) Amendment Act, 1983 with effect from 26.12.1983 to meet out the social demand to resolve the difficulty of proof where helpless married women were eliminated by being forced to commit suicide by the husband or in-laws and incriminating evidence was usually available within the four corners of the matrimonial home and hence was not available to anyone outside the occupants of the house. However, this provision does not create any new offence nor does it create any substantial right, but merely a matter of procedure and its retrospective operation. It gives a discretion to the Court that under a given circumstance, the courts may infer and punish the wrongdoer.

16. The beauty of law is that if a person wants to get some remedy or get the alleged offender prosecuted, then before that he has to prove the existence of certain factual situation. Thus, before the provision u/s 113-A of Evidence Act activated, the burden of proving the fact lies on the person who affirms it. Before making the provisions of Section 113-A of Evidence Act operational, following factors has to be established/ proved beyond any iota of doubt :-

1. Suicide must be committed by a married woman

2. Suicide must have been abetted by the husband or any of the relatives of husband.

3. Suicide must be committed within seven years of marriage

4. She must have been subjected to "cruelty" (as defined in Section 498A I.P.C.) by her husband or his relatives.

17. Presumption u/s 113A of Evidence Act refers to one of the three ingredients of abetment as provided in Section 107 I.P.C. i.e. instigation; conspiracy and intentional aiding of the act.

18. Thus the first requisite for attracting this section is that it should be established that the wife was subjected to "cruelty" as defined in Section 498A I.P.C. 'Cruelty' does not embrace acts of physical torture alone, even scolding or extending derogatory remarks, too would come within its purview.

19. In the celebrated judgments of Hon'ble Apex Court in the case of RAMESH KUMAR VS STATE OF CHHATTISGARH (2001) 9 SCC 618, is directly on this issue. It has been mentioned that where a married woman was eliminated or was forced to commit suicide within four corners of the wall of her husband and there is no independent witness to support the prosecution case, to cope up this eventuality Section 113A of the Evidence Act was incorporated for the first time in the year 1983, adding a presumption and making the husband and his relatives responsible for this unnatural mishap. However, despite of this presumption, the Court cannot lost its sight that presumption is intended to operate against the accused in the field of a criminal law. Before the presumption may be raised, the foundation thereof must exist. A bare reading of Section 113-A of Evidence Act shows that to attract the applicability of Section 113-A, it must be shown that (i) the woman has committed suicide, (ii) such suicide has been committed within a period of seven years from the date of her marriage, (iii) the husband or his relatives, who are charged had subjected her to cruelty. On existence and availability of the above circumstances, the court may presume that such suicide had

been abetted by her husband or by such relatives of her husband. The Legislation has chosen to sound a note of caution. Firstly, the presumption is not mandatory; it is only permissive, keeping in view the employment of expression "may presume" as mentioned in the provisions itself. Secondly, the existence and availability of aforesaid circumstances shall not, like a mathematical formula, enable the presumption being drawn; before the presumption may be drawn the court shall have to regard to "all the other circumstances of the case". A consideration of all the other circumstances of the case may strengthen the presumption or may dictate the conscience of the Court to abstain from drawing the presumption. The expression "all the other circumstances of the case" used in Section 113-A suggests the need to reach a "cause and effect relationship" between the cruelty and the suicide for the purpose of raising a presumption. There shall be a direct nexus/linkage in the said abetment and its afterflow by means of committing suicide by the deceased. Last but not the least, the presumption is not an irrebuttable one. In spite of a presumption having been raised, the evidence adduced in defence or the facts and circumstances otherwise available on record may destroy the presumption. The phrase "may presume" used in Section 113-A is defined in Section-4 of the Evidence Act, which says-"Whenever it is provided by this Act that the court may presume a fact, it may either regard such fact as proved, unless and until it is disproved, or may call for proof of it."

20. It would be not be out of context, while discussing the pivotal point on presumption, one must keep in mind that presumptions are of two folds, presumptions of fact and of law. Presumptions of fact are inferences logically drawn from one fact as to the existence of other facts. Presumptions of fact are rebuttable by evidence to the contrary. Presumptions of law may be either irrebuttable, so that no evidence to the contrary may be given or rebuttable. A rebuttable presumption of law is a legal rule to be applied by the Court in the absence of conflicting evidence. (Halsbury, 4th Edition paras 111, 112).

Among rebuttable presumptions there are again two folds. Section 4 of the Evidence Act defines the words 'may presume' and 'shall presume' as follows :

> (a) 'may presume' : Whenever it is provided by this Act that the Court may presume a fact, if may either regard such facts as proved, unless and until it is disproved or may call for proof of it.
>
> (b) 'shall presume' : whenever it is directed by this Act that the Court shall presume a fact, it shall regard such fact as proved, unless and until it is disproved.

12. In the former case, the Court has an option to raise the presumption or not, but in latter case, the Court must necessarily raise the presumption. If in the case where the Court has an option, it chooses to raise the presumption, the distinction between the two categories of presumption ceases and the fact is presumed, unless and until it is disproved.

21. In this regard, this Court lays its hand to yet another judgment of Hon'ble Apex Court in the case of GURJIT SINGH VS STATE OF PUNJAB in Criminal Appeal Nos.1492-1493 of 2010 decided on 26.11.2019, whereby Hon'ble Apex Court has got an opportunity to dissect the provisions of Section 113-A of the Evidence Act in the light of Sections 306, 107 and 498A I.P.C. As mentioned above in

the light of three essential prerequisites the Court may presume that such suicide has been abeted by the husband or his relatives.

22. In another case of STATE OF WEST BENGAL VS ORILAL JAISWAL AND ANOTHER, (1994) 1 SCC 73, Hon'ble Apex Court has cautioned that the law courts should be extremely careful and cautious in assessing the facts and circumstances of each case and the evidence adduced in the trial for the purpose of finding whether the cruelty meted out to the victim had in fact induced her to end her life by committing suicide. If it transpires to the court that a victim committing suicide was hypersensitive to ordinary petulance discord and differences in domestic life quite common to the society to which the victim belonged and such petulance discord and differences were not expected to induce a similarly circumstanced individual in a given society to commit suicide, the conscience of the Court should not be satisfied for basing a finding that the accused charged of abetting the offence of suicide should be found guilty. Section 498A and 306 I.P.C. are independent and constitute different offences. Though, depending on the facts and circumstances of an individual case, subjecting a woman to cruelty may amount to an offence under Section 498A and may also, if a course of conduct amounting to cruelty is established leaving no other option for the woman except to commit suicide, amount to abetment to commit suicide. However, merely because an accused has been held liable to be punished under Section 498A IPC it does not follow that on the same evidence he must also and necessarily be held guilty of having abetted the commission of suicide by the woman concerned. Thus, as observed by the Hon'ble Apex Court, the courts should be extremely careful and cautious in assessing the facts and circumstances of each case and the evidence adduced by the prosecution for the purpose of finding whether the cruelty meted out to the victim had in fact induced her to end her life by committing suicide. It has further been held that Section 498-A and Section 306 of the IPC are independent and constitute different offences. It has been observed, that dependent on the facts and circumstances of an individual case, subjecting a woman to cruelty may amount to an offence under Section 498-A of the IPC. It has been further observed, that if a course of conduct amounting to cruelty is established leaving no other option for the woman except to commit suicide, it may also amount to abetment to commit suicide. It is further observed that, however, merely because accused had been held liable to be punished under Section 498-A of the IPC, it does not follow that on the same evidence he must also and necessarily be held guilty of having abetted the commission of suicide by the woman concerned.

23. Thus, from the above discussion it is clearly established beyond any iota of doubt that if an accused is found guilty of an offence punishable under Section 498-A of the IPC and the death has occurred within a period of seven years of the marriage, the accused cannot be automatically held guilty for the offfence punishable under Section 306 of the IPC by employing the presumption under Section 113-A of the Evidence Act. Unless the prosecution established that some act or illegal omission by the accused has driven the deceased to commit suicide, the conviction under Section 306 would not be tenable.

24. Illumined by the guidelines of Hon'ble Apex Court, mentioned above, if the Court compares the facts and circumstances of the present case, the admitted position of fact is that within seven years of marriage (11 months to be precise) the deceased Poonam committed suicide by hanging herself and from the statements of witnesses it clearly indicates that there was a demand of Rs.5 lacs and a

four wheeler as alleged in the F.I.R., unmindful of the fact that the applicant is a petty scribe of the deeds in the chambers of one Mr Akhilesh Sharma in a tehsil premise and he has got no means to cope with the daily/recurring expenses of a four-wheeler. During her life time, the deceased has never made any complaint with her family members about the alleged atrocities faced by her on account of alleged additional dowry. This is also admitted that she has committed suicide by bolting the doors from inside and there is singular ligature mark around her neck, obliquely placed, suggestive of the fact that she has hanged herself. There is no mark of any other injury over her person. Yet another startling feature of the case is that the deceased was carrying the pregnancy of 6-7 months and for every married woman this is the most precious time in her life. Ignoring all these, she has taken this extreme step of committing suicide. Under circumstances, the Court has every reason to presume that the deceased seems to be a hypersensitive lady, who has taken this extreme step and has given up the pleasure of being a mother. As suggested by learned counsel for the applicant that being a young entrepreneur she was direly interested in reopening her beauty parlor and wants to open an additional source of income, but the Court cannot ignore the fact that her dreams were shattered by non co-operation of her husband. This could be a reason of discord between the husband and wife, but the Court cannot expect that it could be such a big reason where she commits suicide, moreover, when she is in the valuable phase of her life. There is no such evidence collected during investigation that it could be said that the husband at any point of time either abetted her or created any situation for her or conspired anything where she has been left with no other option but to hang herself. The entire family has been roped in, unmindful of the fact of interse relationship by attributing a general and omnibus role to everybody. Taking the help of the above mentioned observations made by Hon'ble Apex Court, prima facie it seems that there might be a discord and bad breath between the husband and wife with regard to certain issues but rest of the attending circumstances nowhere indicates that the applicant's conduct at any point of time during her life time falls within the category of Section 107 of the I.P.C. i.e. either the husband has instigated her or hatched any conspiracy for doing any act or illegal omission pursuant to the conspiracy or intentionally aided her to act upon certain thing. Mere levelling a bald allegation of dowry harassment with regard to additional dowry the husband could be prosecuted for offence u/s 498A I.P.C. but certainly not within the four corners of Section 306 I.P.C.

25. Keeping in view the nature of the offence, evidence on record regarding complicity of the accused, larger mandate of the Article 21 of the Constitution of India and the dictum of Apex Court in the case of Dataram Singh Vs. State of U.P. and another, (2018)3 SCC 22 and without expressing any opinion on the merits of the case, the Court is of the view that the applicant has made out a case for bail. The bail application is allowed.

26. Let the applicant Arvind, who is involved in aforementioned case crime be released on bail on his furnishing a personal bond and two sureties each in the like amount to the satisfaction of the court concerned subject to following conditions. Further, before issuing the release order, the sureties be verified.

> (i) THE APPLICANT SHALL FILE AN UNDERTAKING TO THE EFFECT THAT HE SHALL NOT SEEK ANY ADJOURNMENT ON THE DATE FIXED FOR EVIDENCE WHEN THE WITNESSES ARE PRESENT IN COURT. IN CASE OF DEFAULT OF

THIS CONDITION, IT SHALL BE OPEN FOR THE TRIAL COURT TO TREAT IT AS ABUSE OF LIBERTY OF BAIL AND PASS ORDERS IN ACCORDANCE WITH LAW.

(ii) THE APPLICANT SHALL REMAIN PRESENT BEFORE THE TRIAL COURT ON EACH DATE FIXED, EITHER PERSONALLY OR THROUGH HIS COUNSEL. IN CASE OF HIS ABSENCE, WITHOUT SUFFICIENT CAUSE, THE TRIAL COURT MAY PROCEED AGAINST HIM UNDER SECTION 229-A IPC.

(iii) IN CASE, THE APPLICANT MISUSES THE LIBERTY OF BAIL DURING TRIAL AND IN ORDER TO SECURE HIS PRESENCE PROCLAMATION UNDER SECTION 82 CR.P.C., MAY BE ISSUED AND IF APPLICANT FAILS TO APPEAR BEFORE THE COURT ON THE DATE FIXED IN SUCH PROCLAMATION, THEN, THE TRIAL COURT SHALL INITIATE PROCEEDINGS AGAINST HIM, IN ACCORDANCE WITH LAW, UNDER SECTION 174-A IPC.

(iv) THE APPLICANT SHALL REMAIN PRESENT, IN PERSON, BEFORE THE TRIAL COURT ON DATES FIXED FOR (1) OPENING OF THE CASE, (2) FRAMING OF CHARGE AND (3) RECORDING OF STATEMENT UNDER SECTION 313 CR.P.C. IF IN THE OPINION OF THE TRIAL COURT ABSENCE OF THE APPLICANT IS DELIBERATE OR WITHOUT SUFFICIENT CAUSE, THEN IT SHALL BE OPEN FOR THE TRIAL COURT TO TREAT SUCH DEFAULT AS ABUSE OF LIBERTY OF BAIL AND PROCEED AGAINST HIM IN ACCORDANCE WITH LAW.

(v) THE TRIAL COURT MAY MAKE ALL POSSIBLE EFFORTS/ENDEAVOUR AND TRY TO CONCLUDE THE TRIAL WITHIN A PERIOD OF ONE YEAR AFTER THE RELEASE OF THE APPLICANT.

27. In case of breach of any of the above conditions, it shall be a ground for cancellation of bail.

28. It is made clear that observations made in granting bail to the applicant shall not in any way affect the learned trial Judge in forming his independent opinion based on the testimony of the witnesses.

29. Since the bail application has been decided under extra-ordinary circumstances, thus in the interest of justice following additional conditions are being imposed just to facilitate the applicant to be released on bail forthwith. Needless to mention that these additional conditions are imposed to cope with emergent condition-:

(a). The applicant shall be enlarged on bail on execution of personal bond without sureties till normal functioning of the courts is restored. The accused will furnish sureties to the satisfaction of the court below within a month after normal functioning of the courts are restored.

(b). The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad.

(c). The computer generated copy of such order shall be self attested by the counsel of the party concerned.

(d). The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

29. However, it is made clear that any willful violation of above conditions by the applicant, shall have serious repercussion on his/her bail so granted by this Court and the trial court is at liberty to cancel the bail, after recording the reasons for doing so, in the given case of any of the condition mentioned above.

Order Date :- 1.12.2020 Sunil Kr Gupta/M.Kumar